EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

DECISION

Application no. 57037/16
Matlab BALAKISHIYEV and Sevinj SURKHAYEVA
against Azerbaijan
and 15 other applications
(see appended table)

The European Court of Human Rights (Fifth Section), sitting on 9 December 2021 as a Committee composed of:

Lado Chanturia, *President,*
Lətif Hüseynov,
Arnfinn Bårdsen, *judges,*
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having regard to the above applications lodged on the various dates indicated in the appended table,

Having regard to the formal declarations accepting a friendly settlement of the cases,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The list of applicants is set out in the appended table.

The applicants' complaints under Article 11 of the Convention concerning the alleged breach of the right to freedom of association, namely the right to form an association, were communicated to the Azerbaijani Government ("the Government"). Complaints based on the same facts were also communicated under Article 6 of the Convention.

The Court received the friendly-settlement declarations, signed by the parties, under which the applicants agreed to waive any further claims against Azerbaijan in respect of the facts giving rise to these applications, subject to an undertaking by the Government to pay them the amounts detailed in the appended table. These amounts will be converted into the currency of the respondent State at the rate applicable on the date of the payment and will be payable within three months from the date of notification of the Court's decision. In the event of failure to pay these amounts within the

above-mentioned three-month period, the Government undertake to pay simple interest on them, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

With respect to application no. 36868/18 the Government also undertook to register the association established by the applicants, within the above-mentioned three-month period.

The payment of the amounts detailed in the appended table and the registration of the association established by the applicants (application no. 36868/18) will constitute the final resolution of the cases.

THE LAW

Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single decision.

The Court takes note of the friendly settlement reached between the parties. It is satisfied that the settlement is based on respect for human rights as defined in the Convention and the Protocols thereto and finds no reasons to justify a continued examination of the applications.

In view of the above, it is appropriate to strike the cases out of the list.

For these reasons, the Court, unanimously,

Decides to join the applications;

Decides to strike the applications out of its list of cases in accordance with Article 39 of the Convention.

Done in English and notified in writing on 13 January 2022.

Viktoriya Maradudina	Lado Chanturia
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention (alleged breach of the right to freedom of association)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Other complaints under well-established case-law	Date of receipt of Government's declaration	Date of receipt of Applicant's declaration	Amount awarded for non-pecuniary damage and costs and expenses per application (in euros)[1]
1.	57037/16 21/09/2016	**Matlab Hasan oglu BALAKISHIYEV** 1969 **Sevinj Zakir gizi SURKHAYEVA** 1975	Yashar Vagif oglu Agazade Baku	Article 6 § 1 of the Convention – alleged breach of the right to a reasoned decision	03/02/2021	14/01/2021	4,750
2.	14303/17 09/02/2017	**Zohra Rafig gizi HASAN** 1995 **Sevinj Ismi gizi ISGANDAROVA** 1968	Yashar Vagif oglu Agazade Baku	Article 6 § 1 of the Convention – alleged breach of the right to a reasoned decision	03/02/2021	14/01/2021	4,750
3.	18149/17 25/02/2017	**Javid Beyverdi oglu ALISHOV** 1980 **Arzu Atdikhan gizi HAJIYEVA** 1973	Yashar Vagif oglu Agazade Baku	Article 6 § 1 of the Convention – alleged breach of the right to a reasoned decision	03/02/2021	14/01/2021	4,750
4.	26105/17 24/03/2017	**Rashad Vahid oglu SEYDALIYEV** 1982 **Saida Ibrahim gizi RZAZADA** 1992	Yashar Vagif oglu Agazade Baku	Article 6 § 1 of the Convention – alleged breach of the right to a reasoned decision	03/02/2021	14/01/2021	4,750

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5.	27188/17 01/04/2017	**Aynura Shamil gizi ABDULLAYEVA** 1984 **Sabina Karam gizi SAFARLI** 1990	Yashar Vagif oglu Agazade Baku	Article 6 § 1 of the Convention – alleged breach of the right to a reasoned decision	03/02/2021	14/01/2021	4,750
6.	27204/17 01/04/2017	**Dilgam Gafar oglu TAMRAZOV** 1984 **Shalala Ali gizi SHAKHMAROVA** 1989	Yashar Vagif oglu Agazade Baku	Article 6 § 1 of the Convention – alleged breach of the right to a reasoned decision	03/02/2021	14/01/2021	4,750
7.	37684/17 10/05/2017	**Shabnam Ali gizi OSMANLI** 1985	Yashar Vagif oglu Agazade Baku	Article 6 § 1 of the Convention – alleged breach of the right to a reasoned decision	03/02/2021	14/01/2021	4,750
8.	64582/17 26/08/2017	**Emin Ali oglu BASHIRLI** 1979 **Rovshan Faraj oglu BASHIROV** 1981	Yashar Vagif oglu Agazade Baku	Article 6 § 1 of the Convention – alleged breach of the right to a reasoned decision	03/02/2021	14/01/2021	4,750
9.	64587/17 16/08/2017	**Taryel Abbas oglu BAYRAMOV** 1984 **Meykhanim Nusrat gizi BAYRAMOVA** 1992	Yashar Vagif oglu Agazade Baku	Article 6 § 1 of the Convention – alleged breach of the right to a reasoned decision	03/02/2021	14/01/2021	4,750
10.	70295/17 25/08/2017	**Shahbala Zakir oglu DAMIROV** 1988	Yashar Vagif oglu Agazade Baku	Article 6 § 1 of the Convention – alleged breach of the right to a reasoned decision	03/02/2021	14/01/2021	4,750

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		Vusala Eldar gizi DAMIROVA 1985					
11.	71863/17 23/09/2017	**Elshan Samid oglu ALLAHVERDIYEV** 1981 **Gulnara Abbasgulu gizi ALLAHVERDIYEVA** 1986	Yashar Vagif oglu Agazade Baku	Article 6 § 1 of the Convention – alleged breach of the right to a reasoned decision	12/02/2021	31/01/2021	4,750
12.	80047/17 15/11/2017	**Ervin Logman oglu ABDULLAYEV** 1976	Yashar Vagif oglu Agazade Baku	Article 6 § 1 of the Convention – alleged breach of the right to a reasoned decision	03/02/2021	14/01/2021	4,750
13.	4300/18 12/01/2018	**Samad Gurban oglu AGAYEV** 1988 **Elnara Tofig gizi AGAYEVA** 1979	Yashar Vagif oglu Agazade Baku	Article 6 § 1 of the Convention – alleged breach of the right to a reasoned decision	30/04/2021	07/03/2021	4,750
14.	16103/18 24/03/2018	**Vafa Karam gizi ALIZADE** 1974 **Zaman Khanoglan oglu BUNYATOV** 1969	Yashar Vagif oglu Agazade Baku	Article 6 § 1 of the Convention – alleged breach of the right to a reasoned decision	30/04/2021	07/03/2021	4,750
15.	36868/18 23/07/2018	**Alovsat Sayad oglu TALISHKHANLI** 1955 **Gubad Ibad oglu IBADOGLU** 1971	Tural Annagi oglu Hajibeyli Baku	Article 6 § 1 of the Convention – alleged breach of the right to a reasoned decision and of the principle of	19/10/2021	25/10/2021	5,000

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		Huseyn Bahadur oglu MALIKOV 1962 **Ellada Sabir gizi MAMMADLI** 1958 **Malahat Jafar gizi MURSHUDLU** 1948 **Rafig Anvar oglu ABDULLALI** 1958 **Vurgun Alish oglu AYYUB** 1957		adversarial proceedings			
16.	37819/19 08/07/2019	**Azer Hatam oglu ALIYEV** 1975 **Malik Hatam oglu ALIYEV** 1969	Yashar Vagif oglu Agazade Baku	Article 6 § 1 of the Convention – alleged breach of the right to a reasoned decision	30/04/2021	07/03/2021	4,750

[1] Plus any tax that may be chargeable to the applicants.